

TENTATIVE RULING(S) FOR August 28, 2026

Department S37 – Judge Winston Keh

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2323004

Sanchez vs M.A. Trucking et al

TENTATIVE RULING(S):

In preparing this ruling, the Court reviewed the Declarations submitted by Ms. Alfaro, counsel for Plaintiffs, and Mr. Manzer, counsel for Defendant Silverado Contractors, the moving party. The Court has reviewed all the submitted briefs on these motions.

Requests for Production of Documents

The following motions are before the Court:

- Motion to Compel Further Responses to Request for Production of Documents, Set One, directed to Plaintiff Reyna Sanchez, individually, including request for monetary sanctions;

- Motion to Compel Further Responses to Request for Production of Documents, Set One, directed to Plaintiff Emilia Quintana Garcia, including request for monetary sanctions; and
- Motion to Compel Further Responses to Request for Production of Documents, Set One, directed to Plaintiff Efren Sanchez Medrano, including request for monetary sanctions.

Ruling

The Court finds Plaintiffs' blanket objections to the Requests for Production without merit. The objection based on privacy is marginally valid but it does not justify withholding the requested information under the circumstances presented here. The requests seeking information concerning Plaintiffs' financial resources and evidence of financial support from the decedent are relevant to the issue of damages and are reasonably calculated to lead to the discovery of admissible evidence. Accordingly, further responses are warranted.

The Court is particularly concerned, however, with Plaintiffs' counsel's failure to meaningfully respond to defense counsel's attempts to meet and confer regarding these discovery disputes.

The hearings on these motions were originally set for July 2026. The Court continued the hearings to August 28, 2026, to provide counsel an additional opportunity to engage in a code-compliant meet and confer under CCP 2016.040, including the required in-person communication.

Despite that additional opportunity, it appears that defense counsel was unable to communicate with Plaintiffs' counsel in person as required by the Discovery Act. Plaintiffs' counsel has provided no persuasive explanation for her failure to respond to defense counsel's efforts to discuss and resolve the issues raised in these motions. The failure to engage in a meaningful meet and confer constitutes a misuse of the discovery process and supports the imposition of monetary sanctions.

Recognizing the potential consequences to both sides, the Court attempted to facilitate resolution of these disputes by scheduling an informal discovery conference before the August 28, 2026, hearing. Notwithstanding the demands of an exceptionally busy trial calendar, the Court set aside an entire afternoon of August 24, 2026, to facilitate resolution of the numerous discovery disputes in this case and to avoid the need for further motion practice. In aggravation,

Plaintiffs' counsel failed to appear. The Court and defense counsel waited more than 30 minutes before concluding that counsel would not participate.

Ms. Alfaro states in her Declaration that she mis-calendared the informal discovery conference. The Court accepts that explanation as to why counsel failed to appear at the conference. It does not, however, explain counsel's failure to respond to defense counsel's efforts to schedule a meet and confer concerning the discovery disputes. Counsel's Declaration contains no explanation for that failure and identifies no meaningful efforts to resolve these issues without Court intervention. This provides an additional basis for the imposition of monetary sanctions. The Court therefore orders the following code-compliant further responses:

- Plaintiff Reyna Sanchez, individually, shall provide a code-compliant further response to Defendant's Request for Production of Documents, Set One, Request No. 2, on or before September 11, 2026.
- Plaintiff Emilia Quintana Garcia shall provide code-compliant further responses to Defendant's Request for Production of Documents, Set One, Requests Nos. 1 and 3, on or before September 11, 2026.
- Plaintiff Efren Sanchez Medrano shall provide code-compliant further responses to Defendant's Request for Production of Documents, Set One, Requests Nos. 1 and 3, on or before September 11, 2026.

Based on the record before it, including Plaintiffs' counsel's failure to meaningfully participate in the discovery process and the meet-and-confer efforts, the Court finds that monetary sanctions are warranted.

In addition to the attorney time and filing fees incurred by defense counsel, Code of Civil Procedure section 2023.050(a)(3). mandates the imposition of a \$1,000 sanction on each motion due to Plaintiffs' counsel's failure to meet and confer in good faith as required. The Court recognizes the substantial amount that would result from imposing the full amount of attorney time sought in connection with all of these motions. In an exercise of leniency, the Court limits the sanctions on each Request for Production motion to \$1,000, plus the filing fee, calculated as follows:

- Filing fee: \$60; and
- Statutory sanction under Code of Civil Procedure section 2023.050: \$1,000.

The total monetary sanction is therefore \$1,060 for each Request for Production motion, or \$3,180 for three motions.

The Court has not included the additional attorney time claimed at \$240 per hour. Had the Court awarded that additional time, the total sanctions would easily exceed \$5,000. Under the circumstances presented here, the Court finds the reduced amount of \$1,060 per motion to be appropriate.

The monetary sanctions are assessed against Plaintiffs' counsel of record and shall be paid to defense counsel on or before September 11, 2026.

Code of Civil Procedure section 2023.050, subdivision (b), gives the Court discretion to require counsel to report the sanctions to the State Bar of California. In a further exercise of leniency, the Court declines to require such a report.

Special Interrogatories

The following motions are before the Court:

- Motion to Compel Further Responses to Special Interrogatories, Set One, directed to Plaintiff Efren Sanchez, including request for monetary sanctions;
- Motion to Compel Further Responses to Special Interrogatories, Set One, directed to Plaintiff Reyna Sanchez, individually, including request for monetary sanctions;
- Motion to Compel Further Responses to Special Interrogatories, Set One, directed to Plaintiff Reyna Sanchez, as successor in interest, including request for monetary sanctions;
- Motion to Compel Further Responses to Special Interrogatories, Set One, directed to Plaintiff Emilia Quintana Garcia, including request for monetary sanctions;
- Motion to Compel Further Responses to Special Interrogatories, Set One, directed to Plaintiff Emily Sanchez, including request for monetary sanctions;
- Motion to Compel Further Responses to Special Interrogatories, Set One, directed to Plaintiff Rogelio Sanchez, Jr., including request for monetary sanctions;

- Motion to Compel Further Responses to Special Interrogatories, Set One, directed to Plaintiff Teresa Sanchez, including request for monetary sanctions;
- Motion to Compel Further Responses to Special Interrogatories, Set One, directed to Plaintiff Efren Sanchez Medrano, including request for monetary sanctions;
- Motion to Compel Further Responses to Special Interrogatories, Set One, directed to Plaintiff David Aranas, including request for monetary sanctions; and

Ruling

Much of the analysis set forth above applies equally to the motions concerning the Special Interrogatories. By claiming that they relied, in some manner, on financial support from the decedent, each Plaintiff has placed his or her financial condition at issue, subject to reasonable limitations. Accordingly, discovery concerning Plaintiffs' financial resources and the nature and extent of financial support received from the decedent is relevant to the damages claimed in this action.

The Court agrees, however, that certain interrogatories are compound. Several of the interrogatories contain more than one discrete question. The appropriate approach is to treat each discrete question separately and count each toward the 35-question limit. That was not done here.

The Court recognizes that this issue could likely have been resolved through a brief meet and confer. A telephone consultation or other timely communication between counsel could have addressed the issue without the need for Court intervention. Plaintiffs' counsel, however, made no meaningful effort to do so.

Plaintiffs' privacy objections have some validity, but they do not justify withholding the requested discovery under the circumstances presented here. Any legitimate privacy concerns can be addressed through reasonable limitations on the scope of the discovery and appropriate protections for sensitive financial information. The remaining boilerplate objections are without merit and are overruled.

Accordingly, the Court orders Plaintiffs to provide the following code-compliant further responses:

- Plaintiff Efren Sanchez shall provide code-compliant further responses to Special Interrogatories Nos. 3 and 9 on or before September 11, 2026.
- Plaintiff Reyna Sanchez, individually, shall provide a code-compliant further response to Special Interrogatory No. 13 on or before September 11, 2026.
- Plaintiff Reyna Sanchez, as successor in interest, shall provide code-compliant further responses to Special Interrogatories Nos. 4 and 8 on or before September 11, 2026.
- Plaintiff Emilia Quintana Garcia shall provide code-compliant further responses to Special Interrogatories Nos. 4, 5, 6, and 7 on or before September 11, 2026.
- Plaintiff Emily Sanchez shall provide a code-compliant further response to Special Interrogatory No. 13 on or before September 11, 2026.
- Plaintiff Rogelio Sanchez, Jr. shall provide code-compliant further responses to Special Interrogatories Nos. 3 and 9 on or before September 11, 2026.
- Plaintiff Teresa Sanchez shall provide code-compliant further responses to Special Interrogatories Nos. 3, 10, and 11 on or before September 11, 2026.
- Plaintiff Efren Sanchez Medrano shall provide code-compliant further responses to Special Interrogatories Nos. 4, 5, 6, and 7 on or before September 11, 2026.
- Plaintiff David Aranas shall provide code-compliant further responses to Special Interrogatories Nos. 10 and 11 on or before September 11, 2026.

Monetary Sanctions

The Court also finds monetary sanctions warranted based on Plaintiffs' counsel's failure to meaningfully participate in the meet-and-confer process and the resulting need for Defendant to seek Court intervention.

For each motion, the Court awards two hours of attorney time at \$240 per hour, rather than the three hours requested, plus the \$60 filing fee. The calculation is as follows:

- Attorney time: $\$240 \text{ per hour} \times 2 \text{ hours} = \480 ; and
- Filing fee: \$60.

The total monetary sanction is therefore \$540 for each motion, or \$4,860 for nine motions.

The monetary sanctions are assessed against Plaintiffs' counsel of record and shall be paid to defense counsel on or before September 11, 2026.